

DELHI. 26/7/71

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between the President of India (hereinafter called the lessor) of the one part
and M/S Vishay and Company, 12-Partap Singh Building,
Janpath Lane, New Delhi.

WHEREAS the Lessor has agreed to demise the plot of nazul land hereinafter described to the Lessee in the manner hereinafter appearing.

at Plot No. 180 in Block No. 172* in the site

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YIELDING AND PAYING thereof the yearly rent payable in advance of Rs. 2100/- (Rupees two thousand and one)

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H. O. Partridge *Harvard University*

support for the surface of the said land or for any building for the time being standing thereon provided always that the Lessor shall make reasonable compensation to the Lessee for all damage directly occasioned by the exercise of the rights hereby reserved or any of them.

II. It is hereby agreed that the licence fee for the period from the 21st day of February, 1963 to the 14th day of Jan. 1971 paid to the Lessor in terms of the Agreement for Lease dated 15.6.1966 and executed between the parties herein shall be deemed to have been paid as ground rent payable hereunder for the said period.

III. The Lessee for himself, his heirs, executors, administrators and assigns covenants with the Lessor in manner following (that is to say)—

- (1) The Lessee will pay unto the Lessor the yearly rent hereby reserved on the days and in the manner hereinbefore appointed.
- (2) The Lessee will from time to time and at all times pay and discharge all rates, taxes, charges and assessments of every description which are now or may at any time hereafter during the continuation of this Lease be assessed, charged, or imposed upon the premises hereby demised or on any buildings to be erected thereupon or on the Landlord or Tenant in respect thereof.
- (3) All arrears of rent and other payments due in respect of the premises hereby demised shall be recoverable in the same manner as arrears of land revenue under the provisions of the Puniab Land Revenue Act, XVII of 1887, and any amending Act for the time being in force.
- (4) The Lessee will in all respects comply with and be bound by the building, drainage and other bye-laws for the time being in force in the New Capital of Delhi.
- (5) The Lessee will not without the previous consent in writing of the Lessor or of such officer or body as the Lessor may authorise in this behalf make any alterations in or additions to the buildings erected on the said demised premises so as to affect any of the architectural or structural features thereof or erect or suffer to be erected on any part of the said demised premises any buildings other than and except the buildings erected thereon at the date of these presents.
- (6) The Lessee shall not without the written consent of the Lessor or such officer or body as he may authorise in this behalf construct any well of any description, or instal any private system of supplying water whether for irrigation or for drinking.
- (7) The Lessee will not without such consent as aforesaid carry on or permit to be carried on the said premises any trade or business whatsoever or use the same or permit the same to be used for any purpose other than that of a double storey residential building for a private dwelling house for one or two families in all or do or suffer to be done thereon any act or thing whatsoever which in the opinion of the Lessor or such officer as he may authorise in this behalf may be an annoyance or disturbance to the President of India or his tenants in the New Capital of Delhi.

(8) Any servant's quarters constructed by the Lessee shall not without the written permission of the Lessor or such officer or body as may be authorised by him in his behalf be occupied or permitted to be occupied otherwise than by the *bona fide* servants or persons occupying the main building.

(9) The Lessee will not without the written consent of the Lessor or duly authorised officer or body as aforesaid make any excavations in the premises hereby demised and will at all times during the continuance of this Lease maintain the premises and all buildings thereon in a sanitary condition to the satisfaction of the said Lessor or duly authorised officer or body as aforesaid.

(10) The Lessee will at all times during the continuance of this Lease keep the buildings ~~to~~ be erected on the said land in a good and substantial state of repair to the satisfaction of the Lessor or duly authorised officer or body as aforesaid.

(11) The Lessee will at all reasonable times grant access to the demised premises to the Lessor or duly authorised officer or body as aforesaid or to the sanitary staff appointed for the purpose of maintaining premises in the New Capital of Delhi in a sanitary condition and will comply with such sanitary rules and regulations, as may be prescribed from time to time by the Lessor or duly authorised officer or body as aforesaid.

** Slip attached

(12) The Lessee will on the determination of this Lease peaceably yield ~~the premises and buildings~~

17(12)
11(9)
That all persons duly authorised by the Lessor shall be at liberty at all reasonable time in the day time during the terms of the lease to enter upon the said land or any building ~~that may be erected thereon to~~ satisfy themselves that the covenants contained in the Lease are being honoured by him in all respects whatsoever.

be answerable in all respects therefor.

Provided also that the Lessor shall be entitled to claim and recover a portion of the unearned increase (i.e., the difference between the premium

14. The lessee has solemnly affirmed by way of an affidavit duly sworn before a 1st Class Magistrate (under his seal and signature) that he has not entered into any agreement for transfer, mortgage, sale, assign or otherwise parting with any interest, directly or indirectly, either in the whole or part of the piece of land, the subject hereof, or in the buildings or materials for the time being thereon nor has he created any sub interest therein. If any such agreement either oral or in writing is found subsequently to be existence, then, notwithstanding the execution of this lease, the lessor will be entitled to determine the lease and re-enter on the demised premises.

him in this behalf within seven days from the receipt of a notice signed by Lessor or such officer as may be authorised by him in this behalf requiring him to remedy such breach it shall be lawful for the officers and workmen acting under the authority and direction of the Lessor to enter upon the premises hereby demised, and (a) to remove or demolish any alterations in or additions to the buildings erected on the said premises, (b) to remove or demolish any buildings erected on the said premises without the previous consent in writing of the Lessor or duly authorised officer (c) to fill any excavation or carry out any repairs that may be necessary and all such moneys and expenses as may be laid out and incurred by the Lessor or by his order shall be paid by the said Lessee; and it is hereby expressly declared that the liberty herein before given is not to prejudice in any way the power given to the President of India by Clauses V and VI hereof.

V. If the yearly rent hereby reserved or any part thereof shall at any time be in arrear and unpaid for one calendar month next after any of the said days whereon the same shall have become due, whether the same shall have been demanded or not, or if there shall have been in the opinion of the Lessor or such officer as may be authorised by him in this behalf whose decision shall be final, any breach by the Lessee or by any person claiming through or under him of any of the covenants or conditions hereinbefore contained and on his part to be observed or performed then and in any such case it shall be lawful for the Lessor or any person or persons duly authorised by him notwithstanding the waiver of any previous cause or right of re-entry upon any part of the premises hereby demised or of the buildings thereon in the name of the whole to re-enter and thereupon this demise and everything herein contained shall cease and determine and the Lessee shall not be entitled to any compensation whatsoever, nor to the return of any premium paid by him. Provided that notwithstanding anything contained herein to the contrary the Lessor may without prejudice to his right of re-entry as aforesaid and at his absolute discretion, accept the payment of ground rent which shall be in arrear as aforesaid together with interest at the rate of 6 per cent per annum.

VI. No forfeiture or re-entry shall be effected except as herein provided without the permission of the Lessor or such officer as may be authorised by him in this behalf and he shall not permit such forfeiture or re-entry until the Lessor has served on the Lessee a notice in writing—

- (a) specifying the particular breach complained of,
- (b) if the breach is capable of remedy, requiring the Lessee to remedy the breach,

and the Lessee fails within a reasonable time from the date of service of the notice to remedy the breach if it is capable of remedy; and in the event of forfeiture or re-entry the Lessor or such officer as may be authorised by him in this behalf may in his discretion relieve against forfeiture on such terms and conditions as he thinks proper.

VII. Nothing in this clause shall apply to entry for breach of covenant against unauthorised sub-division.

VIII. The rent hereby reserved may at the option of the Lessor be enhanced on or after the first day of January ~~1993~~ and thereafter at the end of each successive period of not less than thirty years provided that the increase in the rent fixed at each enhancement shall not at each such time exceed one half of the

Handwritten signature and initials:
K. S. Parth
Q. Parth

increase in the letting value of the site without buildings at the date on which the enhancement is made and such letting value shall be assessed by the Collector or Deputy Commissioner of Delhi. PROVIDED always that any such assessment of letting value for the purpose of this provision shall be subject to the same right on the part of the Lessee of appeal from the orders of the said Collector or Deputy Commissioner and within such time as if the same were an assessment by a Revenue Officer within the meaning of Section 50 of the Punjab Land Revenue Act, 1887 (Act XVII of 1887), and the proceedings for or in relation to any such appeal shall be in all respects governed by the provisions of the said Act in the same manner as if the same had been taken thereunder.

IX. The expressions the Lessor and the Lessee hereinbefore used shall where the context so admits include in the case of the Lessor his successors and assigns and in the case of the Lessee, his heirs, executors, administrator or representatives and other the person or persons in whom the leasehold interest hereby created shall for the time being be vested by assignment or otherwise.

IN WITNESS WHEREOF the parties hereto have set their hands the day and year first above-written.

THE SCHEDULE ABOVE REFERRED TO

Bounded on the North by Plot No.179 Block 172

Bounded on the South by Plot No.191 Block 172.

Bounded on the East by Ist Avenue,

Bounded on the West by 20' wide, Service Road.

Signed by The Partners of Vishay & Co.

For VISHAY & COY.

in the presence of :-

(1)

(2)

(1)

(2)

Signed by C.J. Motwani, A.S.C. & D. Office
for and on behalf of and by the order and
direction of the President of India
in the presence of

(1)

(H. P. JAIN)
Superintendent
Land & Development Office
New Delhi

(C. J. MOTWANI)
Asst. Settlement Commissioner
Land & Development Office
New Delhi.

RESIDENTIAL
REVISED (3)

Presented by Sh./Smt. **Rana Pratap Aged 51 years.**

S/o./W/o/ Sh. **Ram Pratap**

R/o. **12 A, Janpath Lane, New Delhi.**

at the office of the Sub-Registrar, New Delhi.

the **22nd** this **August 1971** between

the hours of **11-12 A.M.**

Sd/-Rana Partap.

Sd/-Illegible
Sub-Registrar
New Delhi.

Execution admitted by the said Sh./Smt. **Rana Pratap**

(2) Sh. Om Pratap

and Sh./Smt.

S/o./W/o. **Ram Pratap** R/o. **67-Khan Market,**
Flat, New Delhi. *Partners of M/S Visharva Company (Private)*
Vendor's Mortgagee's Lessor(s)

Lessee(s) who is/are indentified by Sh. **S.B. Mahajan Advocate/Partner**

S/o. R/o.

and Sh. **Yoginder P and**

S/o. R/o. **ADVOCATE of M/S Kishan & Co. (LESSEE)**

marginal witnesses, witness No.2 is known to me.

Contents of the document explained to the parties who understand the conditions and admit them as correct.

Having satisfied myself that this document was duly executed by Shri **C.J. Motwani**,
Asst.-t. Settlement Commissioner, N. Delhi.

L L a D.D.

In his official capacity his attendance and signature are dispensed with and the document was admitted to registration.

Sd/-Ram Partap

Sd/-OM PARATAP

Sd/-S.B. Mahajan

Sd/-Shri

Yoginder P and

Sd/-Illegible
SUB REGISTRAR
NEW DELHI.

Registered as No. **5117** in Addl. Book No.1

Volume No. **2667** on pages **147** to **150**

this **3rd** day of **Aug.** 19**71**

Sd/-Illegible
SUB REGISTRAR
NEW DELHI.
3.8.71.

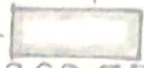
Certified to be true copy.

Sh. B.

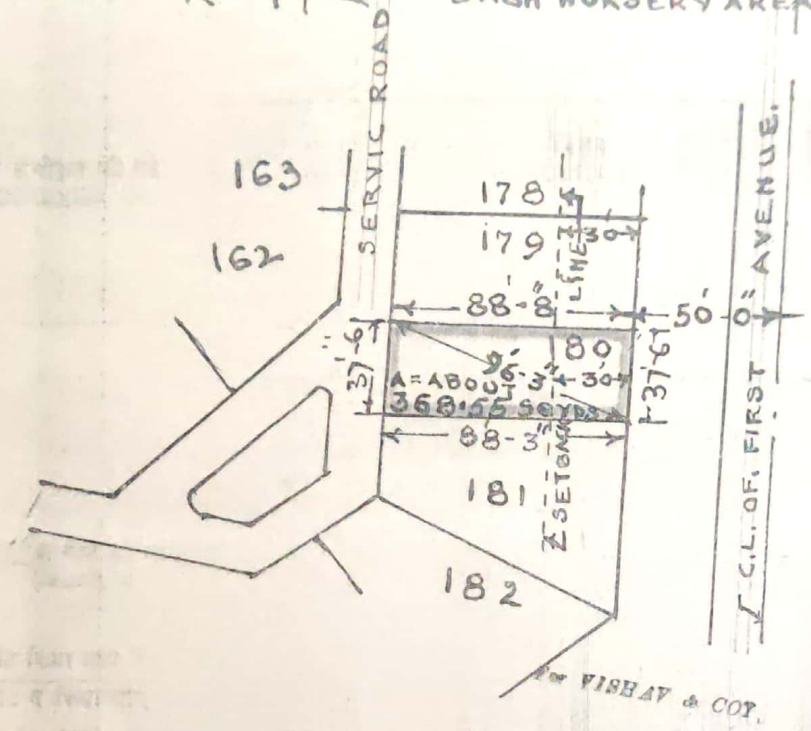
4/8/71
Superintendent

PLAN OF LAND LEASED TO
M/S VISHAY & COMPANY,
12-PARTAP SINGH BUILDING, JANPATH LANE
NEW DELHI

SCALE:- 64 FT = 1 INCH.

LAND LEASED SHOWN THUS- 
A=ABOUT
368.55 S.YDS

BLOCK-172 (FOR BAGH NURSERY AREA)



LESSEE (1) For VISHAY & COY. Partner
(2) For VISHAY & COY. Partner

TRACED BY	D. Ashoka
CHECKED	19/3/71
SIGNED	20/3/71

WITNESSES

(1)	
(2)	

DY. L & D. OFFICER
NEW DELHI

LAND & DEVELOPMENT OFFICER
NEW DELHI.

(2)

Registered

Government of India
Ministry of Works and Housing
Land and Development Office
Nirman Bhawan

No. L&DO/S.P. Cell/S/ 2234

New Delhi, the 29/4/87

To

S/Shri Rana Partap and Om Pratap,
180 Jer Bagh,
New Delhi.

Sub:- Mutation of property No. Block No. 172 Plot No. 180
known as Jer Bagh, New Delhi.

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M E M O R A N D U M

With reference to Shri Om Partap's application dated 28.11.80 on the above cited subject S/Shri Rana Partap and Om Partap are hereby informed that the mutation in the record has been carried out on the same terms and conditions as laid down in the lease deed executed on 2.7.71 by the original lessee in view of the deed of Dissolution of partnership executed between Shri Rana Partap and Shri Om Partap duly registered with the Sub-Registrar under registration at Sl.No. 4986 in addl. Book No. I volume No. 916 on pages 82 to 86 dated 28.10.80.

Jointly

The property now stands in the books of this office in the name of S/Shri Rana Partap and Om Partap sons of late Shri Ram Partap. Both will be co-lessees - Sub-division will not be affected at any stage.

(Mrs. Gita Sagar)

Dy. Land & Development Officer
for and on behalf of the President of India

3/11/87